

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3395

By: Clinton

AS INTRODUCED

An Act relating to Oklahoma Higher Learning Access Program; amending 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which relates to eligibility requirements; changing term from certified classroom teacher to school employee; amending 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2605), which relates to participation in the program; changing term from certified classroom teacher to school employee; modifying definition; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), is amended to read as follows:

Section 2603. A. Except as otherwise provided for in subsection B of this section and elsewhere in this section, to be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an

1 amount equivalent to resident tuition or other tuition pursuant to
2 Section 2604 of this title for the first semester or other academic
3 unit of postsecondary enrollment, a student shall:

4 1. Be a resident of this state or be enrolled in a school
5 district located in this state that serves students who reside in
6 both this state and an adjacent state pursuant to a contract as
7 authorized in Section 5-117.1 of this title;

8 2. Be a United States citizen or lawfully present in the United
9 States. A student who is not a United States citizen or lawfully
10 present in the United States shall not be eligible to participate in
11 the Oklahoma Higher Learning Access Program and to qualify for an
12 award notwithstanding the provisions of Section 3242 of this title.
13 The provisions of this paragraph shall not apply to any student who
14 was enrolled in the Oklahoma Higher Learning Access Program prior to
15 the end of the 2006-2007 school year;

16 3. Have a record of satisfactory compliance with agreements
17 executed pursuant to Section 2605 of this title;

18 4. a. Have graduated within the previous three (3) years
19 from a high school accredited by the State Board of
20 Education or the Oklahoma School of Science and
21 Mathematics with a minimum 2.5 cumulative grade point
22 average on a 4.0 scale for all work attempted in
23 grades nine through twelve,
24

- 1 b. Have graduated within the previous three (3) years
2 from a high school not accredited by the State Board
3 of Education with a minimum 2.5 cumulative grade point
4 average on a 4.0 scale for all work attempted in
5 grades nine through twelve and have achieved a
6 composite score of 22 or higher on the ACT test, or
7 c. Have satisfactorily completed within the previous
8 three (3) years an educational program that was
9 provided through a means other than a public or
10 private school and have achieved a composite score of
11 22 or higher on the ACT test;

12 5. Have completed the curricular requirements for admission to
13 an institution within The Oklahoma State System of Higher Education.
14 Students shall also have attained a 2.5 grade point average in the
15 core curriculum courses. Students who attended a high school which
16 did not offer all the core curriculum courses or students who were
17 educated by other means and were not offered all the core curriculum
18 courses shall be allowed to satisfy this curriculum requirement by
19 participating in a program approved by the Oklahoma State Regents
20 for Higher Education for remediation of high school curricular
21 deficiencies;

22 6. Have satisfied admission standards as determined by the
23 Oklahoma State Regents for Higher Education for first-time-entering
24 students for the appropriate type of institution, or, if attending a

1 private institution, have satisfied admission standards as
2 determined by the private institution. No student participating in
3 the Oklahoma Higher Learning Access Program shall be admitted into
4 an institution of higher education by special admission standards;

5 7. Have secured admission to, and enrolled in, an institution
6 which is a member of The Oklahoma State System of Higher Education,
7 a postsecondary vocational-technical program offered by a technology
8 center school that meets the requirements to be eligible for federal
9 student financial aid, or a private institution of higher learning
10 located within this state and accredited pursuant to Section 4103 of
11 this title; and

12 8. a. Have established financial need according to the
13 provisions of subsection D of Section 2605 of this
14 title and standards and provisions promulgated by the
15 Oklahoma State Regents for Higher Education,

16 b. If the student was adopted between birth and twelve
17 (12) years of age while in the permanent custody of
18 the Department of Human Services, in the court-ordered
19 custody of a licensed private nonprofit child-placing
20 agency, or federally recognized Indian tribe, as
21 defined by the federal Indian Child Welfare Act of
22 1978, have established financial need according to the
23 provisions of paragraph 1 of subsection E of Section
24 2605 of this title and standards and provisions

1 promulgated by the Oklahoma State Regents for Higher
2 Education,

3 c. If the student was adopted between thirteen (13) and
4 seventeen (17) years of age while in the permanent
5 custody of the Department of Human Services, in the
6 court-ordered custody of a licensed private nonprofit
7 child-placing agency, or federally recognized Indian
8 tribe, as defined by the federal Indian Child Welfare
9 Act of 1978, have established financial need according
10 to the provisions of paragraph 2 of subsection E of
11 Section 2605 of this title and standards and
12 provisions promulgated by the Oklahoma State Regents
13 for Higher Education,

14 d. If the student was placed in the custody of the
15 Department of Human Services at any time during the
16 eighth, ninth, tenth, or eleventh grade and enrolls in
17 the program no later than his or her official date of
18 high school graduation, have established financial
19 need according to the provisions of paragraph 3 of
20 subsection E of Section 2605 of this title and
21 standards and provisions promulgated by the Oklahoma
22 State Regents for Higher Education, or

23 e. If the student is the child of a ~~certified classroom~~
24 ~~teacher~~ school employee and meets the provisions of

1 paragraph 5 of subsection E of Section 2605 of this
2 title. For the purposes of this paragraph, "~~certified~~
3 ~~classroom teacher~~ school employee" shall have the same
4 meaning as provided in subparagraph d of paragraph 5
5 of subsection E of Section 2605 of this title.

6 B. 1. A student shall be eligible to participate in the
7 Oklahoma Higher Learning Access Program and to qualify for an award
8 which includes payment of an amount equivalent to resident tuition
9 or other tuition pursuant to Section 2604 of this title for the
10 first semester or other academic unit of postsecondary enrollment if
11 the student meets all of the following criteria:

12 a. is a child of any person killed after January 1, 2000,
13 in the line of duty in any branch of the United States
14 Armed Forces or who died after January 1, 2000, as a
15 result of an injury sustained while in the line of
16 duty in any branch of the United States Armed Forces
17 and the person who was killed or died filed an
18 individual or joint Oklahoma income tax return for the
19 tax year prior to the year during which the person was
20 killed or died,

21 b. is a resident of this state or is enrolled in a school
22 district located in this state that serves students
23 who reside in both this state and an adjacent state
24

1 pursuant to a contract as authorized in Section 5-
2 117.1 of this title,

3 c. enrolls in an institution within The Oklahoma State
4 System of Higher Education prior to reaching the age
5 of twenty-one (21),

6 d. has satisfied admission standards as determined by the
7 Oklahoma State Regents for Higher Education for first-
8 time-entering students for the appropriate type of
9 institution, or, if attending a private institution,
10 has satisfied admission standards as determined by the
11 private institution. No student participating in the
12 Oklahoma Higher Learning Access Program shall be
13 admitted into an institution of higher education by
14 special admission standards,

15 e. has secured admission to, and enrolled in, an
16 institution which is a member of The Oklahoma State
17 System of Higher Education, a postsecondary
18 vocational-technical program offered by a technology
19 center school that meets the requirements to be
20 eligible for federal student financial aid, or a
21 private institution of higher learning located within
22 this state and accredited pursuant to Section 4103 of
23 this title, and

1 f. executes an agreement pursuant to subsection C of
2 Section 2605 of this title.

3 2. A student who is eligible to participate in the program
4 pursuant to this subsection shall not be required to meet the
5 eligibility requirements set forth in subsection A of this section.

6 C. To retain eligibility while pursuing the program of higher
7 learning in which enrolled, the student shall:

8 1. Meet the requirements for retention and degree completion as
9 established by the institution in which the student is enrolled;

10 2. Maintain good academic standing and satisfactory academic
11 progress according to standards of the Oklahoma State Regents for
12 Higher Education;

13 3. Maintain satisfactory academic progress as required for
14 eligibility for federal Title IV student financial aid programs.
15 The provisions of this paragraph shall become effective for the
16 2012-2013 school year;

17 4. Comply with the standards related to maintenance of
18 eligibility as promulgated by the Oklahoma State Regents for Higher
19 Education; and

20 5. Refrain from conduct that leads to expulsion or suspension
21 of more than one semester from an institution of higher education.
22 A student who violates the provisions of this paragraph shall
23 permanently lose eligibility for program benefits. The provisions
24 of this paragraph shall become effective January 1, 2008.

1 D. The Oklahoma State Regents for Higher Education and the
2 State Board of Career and Technology Education shall promulgate
3 rules relating to maintenance of eligibility under the Oklahoma
4 Higher Learning Access Act by a student.

5 E. It is the intent of the Legislature that students in the
6 ninth grade for the 1992-93 school year who are determined to be
7 eligible Oklahoma Higher Learning Access students pursuant to the
8 Oklahoma Higher Learning Access Act shall be the first students
9 eligible for benefits from the Oklahoma Higher Learning Access Trust
10 Fund.

11 F. The Oklahoma State Regents for Higher Education are
12 authorized to study, develop, and propose criteria for determining
13 award eligibility based upon the completion of seven semesters of
14 high school coursework by a student.

15 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as
16 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
17 2025, Section 2605), is amended to read as follows:

18 Section 2605. A. Each school year, every fifth- through
19 eleventh-grade student in the public and private schools of this
20 state and students who are educated by other means and are in the
21 equivalent of the fifth through eleventh grade shall be apprised,
22 together with the parent, custodial parent, or guardian of the
23 student, of the opportunity for access to higher learning under the
24 Oklahoma Higher Learning Access Program. The Oklahoma State Regents

1 for Higher Education and the State Board of Education shall develop,
2 promote, and coordinate a public awareness program to be utilized in
3 making students and parents aware of the Oklahoma Higher Learning
4 Access Program.

5 B. On a form provided by the Oklahoma State Regents for Higher
6 Education, every public school district shall designate at least one
7 Oklahoma Higher Learning Access Program contact person, who shall be
8 a counselor or teacher, at each public school site in this state in
9 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
10 When requested by the State Regents, the State Board of Education
11 shall assist the State Regents to ensure the designation of contact
12 persons. Private schools shall also designate at least one school
13 official as a contact person. For students who are educated by
14 other means, a parent or guardian or other person approved by the
15 State Regents shall be designated the contact person.

16 C. 1. Students who qualify on the basis of financial need
17 according to subsection D or E of this section or who meet the
18 eligibility qualification set forth in subparagraph a of paragraph 1
19 of subsection B of Section 2603 of this title no later than December
20 31 of their twelfth-grade year or prior to reaching the age of
21 seventeen (17) and who qualify on the basis of the standards and
22 provisions promulgated by the Oklahoma State Regents for Higher
23 Education shall be given the opportunity throughout the eighth-,
24 ninth-, tenth-, and eleventh-grade years and no later than December

1 31 of the twelfth-grade year, for students enrolled in a public or
2 private school, or between the ages of thirteen (13) and seventeen
3 (17), for students who are educated by other means, to enter into
4 participation in the program by agreeing to, throughout the
5 remainder of their school years or educational program:

- 6 a. attend school or an educational program regularly and
7 do homework regularly,
- 8 b. refrain from substance abuse,
- 9 c. refrain from commission of crimes or delinquent acts,
- 10 d. have school work and school records reviewed by
11 mentors designated pursuant to the program,
- 12 e. provide information requested by the Oklahoma State
13 Regents for Higher Education or the State Board of
14 Education, and
- 15 f. participate in program activities.

16 2. Students who meet the eligibility qualification set forth in
17 subparagraph a of paragraph 1 of subsection B of Section 2603 of
18 this title after December 31 of their twelfth-grade year or after
19 reaching the age of eighteen (18) shall be given the opportunity
20 prior to reaching the age of twenty-one (21) to enter into
21 participation in the program and shall execute an agreement with
22 provisions as determined by the Oklahoma State Regents for Higher
23 Education.

1 3. The contact person shall maintain the agreements, which
2 shall be executed on forms provided by the Oklahoma State Regents
3 for Higher Education and managed according to regulations
4 promulgated by the Oklahoma State Regents for Higher Education, and
5 the contact person shall monitor compliance of the student with the
6 terms of the agreement. The Oklahoma State Regents for Higher
7 Education are authorized to process student agreements and verify
8 compliance with the agreements. Students failing to comply with the
9 terms of the agreement shall not be eligible for the awards provided
10 in Section 2604 of this title.

11 4. The Oklahoma State Regents for Higher Education may provide
12 an exception to the age limits provided for in paragraphs 1 and 2 of
13 this subsection pursuant to subsection L of this section.

14 5. Notwithstanding the provisions of Sections 5-132 and 5-132.1
15 of this title, a student who is age twenty-one (21) or older shall
16 not be eligible to enter into participation in the program.

17 D. Except as otherwise provided for in subsection E of this
18 section and except for students who qualify pursuant to subsection B
19 of Section 2603 of this title, a student shall not be found to be in
20 financial need for purposes of the Oklahoma Higher Learning Access
21 Program if:

22 1. Beginning with eighth-, ninth-, or tenth-grade students who
23 are enrolled in a public or private school or students between the
24 ages of thirteen (13) and fifteen (15) who are educated by other

1 means who apply for participation in the program in the 2017-2018
2 school year, the federal adjusted gross income of the student's
3 ~~parent(s)~~ parents exceeds Fifty-five Thousand Dollars (\$55,000.00)
4 per year;

5 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
6 students who are enrolled in a public or private school or students
7 between the ages of thirteen (13) and sixteen (16) who are educated
8 by other means who apply for participation in the program in the
9 2021-2022 school year, the federal adjusted gross income of the
10 student's ~~parent(s)~~ parents exceeds Sixty Thousand Dollars
11 (\$60,000.00) per year;

12 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
13 students who are enrolled in a public or private school or students
14 between the ages of thirteen (13) and sixteen (16) who are educated
15 by other means who apply for participation in the program in the
16 2022-2023 school year:

17 a. the federal adjusted gross income of the student's
18 ~~parent(s)~~ parents, who have two or fewer dependent
19 children, exceeds Sixty Thousand Dollars (\$60,000.00)
20 per year,

21 b. the federal adjusted gross income of the student's
22 ~~parent(s)~~ parents, who have three or four dependent
23 children, exceeds Seventy Thousand Dollars
24 (\$70,000.00) per year, or

1 c. the federal adjusted gross income of the student's
2 ~~parent(s)~~ parents, who have five or more dependent
3 children, exceeds Eighty Thousand Dollars (\$80,000.00)
4 per year;

5 4. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
6 students or twelfth-grade students no later than December 31 of
7 their twelfth-grade year who are enrolled in a public or private
8 school or students between the ages of thirteen (13) and seventeen
9 (17) who are educated by other means who apply for participation in
10 the program in the 2025-2026 school year:

11 a. the federal adjusted gross income of the student's
12 ~~parent(s)~~ parents, who have two or fewer dependent
13 children, exceeds Sixty Thousand Dollars (\$60,000.00)
14 per year,

15 b. the federal adjusted gross income of the student's
16 ~~parent(s)~~ parents, who have three or four dependent
17 children, exceeds Seventy Thousand Dollars
18 (\$70,000.00) per year, or

19 c. the federal adjusted gross income of the student's
20 ~~parent(s)~~ parents, who have five or more dependent
21 children, exceeds Eighty Thousand Dollars (\$80,000.00)
22 per year;

23 5. Beginning with the 2018-2019 academic year, prior to
24 receiving any Oklahoma Higher Learning Access Program benefit award

1 for any year during which the student is enrolled in an institution
2 which is a member of The Oklahoma State System of Higher Education,
3 a postsecondary vocational-technical program offered by a technology
4 center school that meets the requirements to be eligible for federal
5 student financial aid, or a private institution of higher learning
6 located within this state and accredited pursuant to Section 4103 of
7 this title, the federal adjusted gross income of the student's
8 ~~parent(s)~~ parents exceeds One Hundred Thousand Dollars (\$100,000.00)
9 per year.

10 The determination of financial qualification as set forth in
11 this paragraph shall be based on the income of the student, not the
12 income of the ~~parent(s)~~ parents, if a student:

- 13 a. is determined to be independent of the student's
14 parents for federal financial aid purposes,
- 15 b. was in the permanent custody of the Department of
16 Human Services at the time the student enrolled in the
17 program, or
- 18 c. was in the court-ordered custody of a federally
19 recognized Indian tribe, as defined by the federal
20 Indian Child Welfare Act of 1978, at the time the
21 student enrolled in the program.

22 The provisions of this paragraph shall apply to any student who
23 has received an Oklahoma Higher Learning Access Program benefit
24 award after the 2017-2018 school year; and

1 6. The Oklahoma State Regents for Higher Education shall review
2 the determination of financial qualification as set forth in
3 paragraphs 1, 2, 3, and 4 of this subsection if the income from
4 taxable and nontaxable sources of the student's ~~parent(s)~~ parents
5 includes income received from nontaxable military benefits or income
6 received from the federal Social Security Administration due to the
7 death or disability of the student's ~~parent(s)~~ parents. If the
8 income from taxable and nontaxable sources of the student's
9 ~~parent(s)~~ parents, excluding income received from nontaxable
10 military benefits or income received from the federal Social
11 Security Administration due to the death or disability of the
12 student's ~~parent(s)~~ parents, does not exceed the limitations set
13 forth by paragraphs 1, 2, 3, and 4 of this subsection, the student
14 shall be determined to have met the financial qualification set
15 forth in paragraphs 1, 2, 3, and 4 of this subsection.

16 E. 1. A student who was adopted between birth and twelve (12)
17 years of age while in the permanent custody of the Department of
18 Human Services, in the court-ordered custody of a licensed private
19 nonprofit child-placing agency, or federally recognized Indian
20 tribe, as defined by the federal Indian Child Welfare Act of 1978,
21 shall not be found to be in financial need for purposes of the
22 Oklahoma Higher Learning Access Program if at the time the student
23 begins postsecondary education and prior to receiving any Oklahoma
24 Higher Learning Access Program benefit award, the federal adjusted

1 gross income of the student's ~~parent(s)~~ parents exceeds One Hundred
2 Fifty Thousand Dollars (\$150,000.00) per year. The provisions of
3 this paragraph shall not apply to any student who has received an
4 Oklahoma Higher Learning Access Program benefit award prior to the
5 2012-2013 school year.

6 2. A student who was adopted between thirteen (13) and
7 seventeen (17) years of age while in the permanent custody of the
8 Department of Human Services, in the court-ordered custody of a
9 licensed private nonprofit child-placing agency, or federally
10 recognized Indian tribe, as defined by the federal Indian Child
11 Welfare Act of 1978, shall not be found to be in financial need for
12 purposes of the Oklahoma Higher Learning Access Program if at the
13 time the student begins postsecondary education and prior to
14 receiving any Oklahoma Higher Learning Access Program benefit award,
15 the federal adjusted gross income of the student's ~~parent(s)~~ parents
16 exceeds Two Hundred Thousand Dollars (\$200,000.00) per year. The
17 provisions of this paragraph shall not apply to any student who has
18 received an Oklahoma Higher Learning Access Program benefit award
19 prior to the 2012-2013 school year.

20 3. A student who was placed in the custody of the Department of
21 Human Services at any time during the eighth, ninth, tenth, or
22 eleventh grade and enrolls in the program no later than his or her
23 official date of high school graduation shall not be found to be in
24 financial need for purposes of the Oklahoma Higher Learning Access

1 Program if the federal adjusted gross income of the student exceeds
2 Sixty Thousand Dollars (\$60,000.00) per year.

3 4. Except for students who qualify pursuant to subsection B of
4 Section 2603 of this title, the determination of financial
5 qualification as set forth in this subsection shall be based on the
6 income of the student, not the income of the ~~parent(s)~~ parents, if
7 the student is determined to be independent of the student's parents
8 for federal financial aid purposes. A determination of financial
9 qualification shall not be required for the student who meets the
10 criteria set forth in this subsection at the time the student
11 applies for participation in the program. The provisions of this
12 paragraph shall not apply to any student who has received an
13 Oklahoma Higher Learning Access Program benefit award prior to the
14 2008-2009 school year.

15 5. a. A student who is the child of a ~~certified classroom~~
16 ~~teacher~~ school employee at the time the student
17 applies for participation in the Oklahoma Higher
18 Learning Access Program shall not be found to be in
19 financial need for the purposes of the Oklahoma Higher
20 Learning Access Program if, beginning with eighth-,
21 ninth-, tenth-, or eleventh-grade students or twelfth-
22 grade students no later than December 31 of their
23 twelfth-grade year who are enrolled in a public or
24 private school or students between thirteen (13) and

1 seventeen (17) years of age who are educated by other
2 means who apply for participation in the program in
3 the 2025-2026 school year, the household income of the
4 student's ~~parent(s)~~ parents is equal to or greater
5 than seven hundred percent (700%) of the federal
6 poverty level (FPL).

7 b. Prior to receiving any Oklahoma Higher Learning Access
8 Program benefit award for any year during which the
9 student is enrolled in an institution that is a member
10 of The Oklahoma State System of Higher Education, a
11 postsecondary vocational-technical program offered by
12 a technology center school that meets the eligibility
13 requirements for federal student financial aid, or a
14 private institution of higher learning located within
15 this state and accredited pursuant to Section 4103 of
16 this title, the household income of the ~~parent(s)~~
17 parents of a student who qualifies pursuant to this
18 paragraph shall not be equal to or greater than seven
19 hundred percent (700%) of the federal poverty level
20 (FPL).

21 c. The Oklahoma State Regents for Higher Education shall
22 verify the full-time employment status of the
23 student's ~~parent(s)~~ parents prior to a student who
24

1 qualifies pursuant to this paragraph receiving any
2 Oklahoma Higher Learning Access Program benefit award.

- 3 d. For the purposes of this paragraph, "~~certified~~
4 ~~classroom teacher~~ school employee" means a ~~certified,~~
5 ~~full-time classroom teacher who has been employed as a~~
6 ~~teacher in a public school district classroom~~ person
7 defined as a teacher in paragraph 1 of Section 1-116
8 of this title who has taught in this state for a
9 minimum of ten (10) years prior to his or her child
10 applying for participation in the program or a person
11 defined as a support employee in paragraph 9 of
12 Section 1-116 of this title who has been employed by a
13 school district in this state for a minimum of ten
14 (10) years prior to his or her child applying for
15 participation in the program. The ~~teacher is~~ school
16 employee shall not be required to have been employed
17 by the same public school district for ten (10)
18 consecutive years. ~~Certified classroom teacher does~~
19 ~~not mean a certified teacher~~ School employee shall not
20 include any person who is employed as a school
21 district superintendent, principal, or any other
22 position within the administration of a public school
23 district when his or her child applies for
24 participation in the program or prior to his or her

1 child receiving any Oklahoma Higher Learning Access
2 Program benefit award.

3 F. The financial qualification of a student as set forth in
4 subsections D and E of this section shall be certified by the
5 contact person or by the Oklahoma State Regents for Higher Education
6 on the agreement form provided by the Oklahoma State Regents for
7 Higher Education. The form shall be retained in the permanent
8 record of the student and a copy forwarded to the Oklahoma State
9 Regents for Higher Education.

10 G. Agreements shall be witnessed by the parent, custodial
11 parent, or guardian of the student, who shall further agree to:

12 1. Assist the student in achieving compliance with the
13 agreements;

14 2. Confer, when requested to do so, with the school contact
15 person, other school personnel, and program mentors;

16 3. Provide information requested by the Oklahoma State Regents
17 for Higher Education or the State Board of Education; and

18 4. Assist the student in completing forms and reports required
19 for program participation, making applications to institutions and
20 schools of higher learning, and filing applications for student
21 grants and scholarships.

22 H. The Oklahoma State Regents for Higher Education shall
23 promulgate rules for the determination of student compliance with
24 agreements made pursuant to this section.

1 I. The Oklahoma State Regents for Higher Education shall
2 designate personnel to coordinate tracking of program records for
3 the years when students participating in the program are still in
4 the schools or are being educated by other means, provide staff
5 development for contact persons in the schools, and provide liaison
6 with the State Board of Education and local organizations and
7 individuals participating in the program.

8 J. The school district where an Oklahoma Higher Learning Access
9 Program student is enrolled when the student begins participation in
10 the program and any subsequent school district where the student
11 enrolls shall forward information regarding participation by the
12 student in the program to a school to which the student transfers
13 upon the request of the school for the records of the student.

14 K. Students participating in the Oklahoma Higher Learning
15 Access Program shall provide their Social Security number or their
16 student identification number used by their school to the Oklahoma
17 State Regents for Higher Education. The State Regents shall keep
18 the numbers confidential and use them only for administrative
19 purposes.

20 L. The State Regents may provide an exception to the age limits
21 provided for in paragraphs 1 and 2 of subsection C of this section
22 to a student due to hardship circumstances and allow an application
23 to the Oklahoma Higher Learning Access Program for twelfth-grade
24 students enrolled in a public or private school and students who are

1 educated by other means and are in the equivalent of twelfth grade.
2 Provided, however, the exception due to hardship circumstances shall
3 not apply to:

4 1. A student enrolled in a public or private school after the
5 student's official date of high school graduation;

6 2. A student educated by other means who is age nineteen (19)
7 or older; or

8 3. Any student who is age twenty-one (21) or older.

9 The Oklahoma State Regents for Higher Education shall promulgate
10 rules to implement the provisions of this subsection.

11 SECTION 3. This act shall become effective July 1, 2026.

12 SECTION 4. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

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17 60-2-15769 AQH 12/31/25

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